

UNITED STATES INTERNATIONAL TRADE COMMISSION

Washington, D.C.

In the Matter of

**CERTAIN PORTABLE POWER STATIONS AND
PACKAGING THEREFOR**

Inv. No. 337-TA-563

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U.S. ITC
COMM

**ORDER NO. 5: INITIAL DETERMINATION FINDING RESPONDENT SINOCEM
NINGBO LTD. IN DEFAULT**

(July 12, 2006)

On May 9, 2006, Complainant Roadmaster (USA) Inc. ("Roadmaster") moved [563-01] for an order directing Respondent Sinochem Ningbo LTD ("Sinochem") to show cause why it should not be found in default for failing to respond to the Complaint¹ and Notice of Investigation². Roadmaster's motion further requested issuance of an initial determination finding Sinochem in default upon failure to show cause. In addition, Roadmaster's motion included a request for immediate entry of a general exclusion order, limited exclusion order, cease and desist order, and/or other appropriate relief upon finding Sinochem in default. On May 22, 2006, the Commission Investigative Staff ("Staff") filed a response supporting Roadmaster's motion, and took no position with respect to Roadmaster's request for immediate entry of relief upon finding of default by Sinochem. No other responses to Roadmaster's motion were filed.

Order No. 4, issued on May 24, 2006, granted Roadmaster's motion ordering Sinochem to show, by the close of business on June 13, 2006, why it should not be found in default for failure to

¹ Roadmaster filed a complaint with the Commission pursuant to Section 337 of the Tariff Act of 1930 on February 8, 2006, and supplemented its Complaint on February 27, 2006.

² The Notice of Investigation, issued by the Commission, was published in the Federal Register as 71 Fed. Reg. 13,166 on March 14, 2006.

respond to the Complaint and Notice of Investigation pursuant to Rule 210.16 of the Commission's Rules of Practice and Procedure, 19 C.F.R. § 210.16. No responses to Order No. 4 were filed by the deadline date, and no responses have been filed as of the present date.

Commission Rule 210.16 provides in pertinent part, as follows:

A party shall be found in default if it fails to respond to the complaint and notice of investigation in the manner prescribed in §210.13 or § 210.59(c), or otherwise fails to answer the complaint and notice, and fails to show cause why it should not be found in default.

19 C.F.R. § 210.16(a)(1). The Commission's Rules further provide that "[a] party found in default shall be deemed to have waived its right to appear, to be served with documents, and to contest the allegations at issue in the investigation." 19 C.F.R. § 210.16(b)(3).

Accordingly, it is the INITIAL DETERMINATION of the Administrative Law Judge that Respondent Sinochem is found to be in default. Consequently, Sinochem has waived its rights to appear, to be served with documents, and to contest the allegations at issue in the investigation.

Pursuant to 19 C.F.R. § 210.42(h), this initial determination shall become the determination of the Commission unless a party files a petition for review of the initial determination pursuant to 19 C.F.R. § 210.43(a), or the Commission, pursuant to 19 C.F.R. § 210.44, orders on its own motion a review of the initial determination or certain issues contained herein.

SO ORDERED.


Charles E. Bullock
Administrative Law Judge

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CERTIFICATE OF SERVICE

I, Marilyn R. Abbott, hereby certify that the attached **ORDER** was served upon, **David O. Lloyd, Esq.**, Commission Investigative Attorney, and the following parties via first class mail and air mail where necessary on July 13, 2006.



Marilyn R. Abbott, Secretary
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